

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 1**  
**Honorable Eunice Lee, Presiding**  
TBD, Courtroom Clerk  
191 North First Street, San Jose, CA 95113

**DATE: June 16, 2026    TIME: 9:00 A.M. and 9:01 A.M.**

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.  
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,  
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

**\*\*Please specify the issue to be contested when calling the Court and counsel\*\***

**LAW AND MOTION TENTATIVE RULINGS**

|                               |            |                                                           |                                                              |
|-------------------------------|------------|-----------------------------------------------------------|--------------------------------------------------------------|
| <b>9:01<br/>A.M.</b>          |            |                                                           |                                                              |
| <u><a href="#">LINE 1</a></u> | 23CV412119 | Susana<br>Hernandez et al<br>vs Alissa<br>Fernandez et al | <b>Petition for Minor's Compromise</b><br>Parties to appear. |

**- oo0oo -**

9:00 A.M.

**Calendar Lines # 1**

**Case Name** Blossom Hill Estates Homeowners Associations vs Louise Wollert et al

**Case No.** 23CV409917

**Motion to Amend Clerical Error in Judgment and Order for Sale**

**I. BACKGROUND**

**A. BRIEF FACTUAL BACKGROUND**

On January 12, 2023, Plaintiff Blossom Hill Estates Homeowners Association (“The Association”) filed a Complaint against Defendant Louise C. Wollert for judicial foreclosure, breach of contract, common counts, and damages. The property at issue is 5554 Spinnaker Drive #4, San Jose, California 95123 (“Subject Property”). The Plaintiff served the Complaint via substituted service on January 31, 2024.<sup>1</sup> No timely response was filed. The Association entered default judgment against Defendant on July 6, 2023 and a judgment was entered on April 9, 2024. Default judgment in the amount of \$26,360.52 was authorized by the Honorable Evette Pennypacker.

**B. RELEVANT PROCEDURAL HISTORY**

On May 21, 2024, the Plaintiff filed a motion to amend judgment to include foreclosure of the lien and permit sale of the property located at 5554 Spinnaker Drive, #4, San Jose, California 95123 as prayed for in its Complaint. The plaintiff’s motion was heard on June 25, 2024 with the Honorable Shella Deen presiding. On July 25, 2024, Judge Deen executed an Order denying the plaintiff’s request on the grounds there was insufficient proof of the amendment. The Plaintiff filed a revised motion to amend on July 25, 2024. After the hearing, on October 3, 2024, the Honorable Shella Deen, once again denied the motion for lack of evidence. The motion was denied without prejudice. On October 28, 2024, the plaintiff filed its third motion to amend the judgment. On May 20, 2025, the Honorable Deen denied the motion without prejudice a third time for lack of service. On that same day, the plaintiff filed its fourth motion to amend. On August 19, 2025,<sup>2</sup> the Honorable Shella Deen heard the motion and granted the motion and directed Plaintiff to file the amended judgment within 10 days of the order. The Amendment to Judgment was authorized by Judge Deen and filed on October 1, 2025. The Court notes that no opposition papers were filed by the defendant in any of the four hearings and the motion was deemed unopposed. On October 30, 2025, a writ of possession was filed.

**C. PRESENT MOTION TO AMEND**

On May 8, 2026, Plaintiff The Association filed this motion to amend a clerical error in judgment and order for sale pursuant to Code of Civil Procedure section 473(d). The Association seeks to amend a sentence to the July 6, 2023, Default Judgment to include an Order for Sale on the August 27, 2025 Judgment. Specifically, Plaintiff seeks to amend the sentence to include the following sentence: *“The proceeds of the sale shall be applied to the amounts due to Plaintiff pursuant to this Judgment, including attorney’s fees and costs, and any unpaid homeowner association dues incurred between the date of entry of the Judgment and the date of the sale.”* (Plaintiff’s motion, p. 2). Plaintiff asserts the omission of that sentence was a clerical error because the relief was expressly pled in its Complaint for Judicial Foreclosure, Breach of Contract, Common Counts and Damages filed on January 12, 2023. (Plaintiff’s motion, p. 2 and “Compliant”). The motion was accompanied by a proof of service to Defendant Louise Wollert (“Wollert”) indicating U.S. mail service on May 8, 2026.

<sup>1</sup> Plaintiff asserts that the default was entered on January 31, 2023. (See, Plaintiff’s Motion, p., 2). However, per the Court records, this is an error. Default was entered on January 31, 2024.

<sup>2</sup> Plaintiff indicates in its moving papers that on August 27, 2025, the Honorable Shella Deen entered an Amendment to the Judgment dated April 9, 2024 and Order of Sale (the “Judgment”). This date conflicts with the Court records as stated above. The hearing occurred on August 19, 2025 and the formal Order and Amended Judgment was signed and authorized on October 1, 2025.